

# PUBLIC SUBMISSION

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**Docket:** NSF\_FRDOC\_0001

Recently Posted NSF Rules and Notices.

**Comment On:** NSF\_FRDOC\_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

**Document:** NSF\_FRDOC\_0001-DRAFT-7486

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## General Comment

This disregard of prior copyright protection in the interest of AI progress is troubling, additionally it sets a precedent that hurts the legal protection of copyright and its enforcement. What would be a fair alternate is for a licensing agreement - to ensure some form of compensation for the copyright holders. Additionally it is critical to safeguard the right to refuse access to material where copyright is established - else it enables the use and abuse of copyrighted materials for profit by third parties (i.e. the owners/developers of the AI agents), many of whom have already violated existing copyright law in training their models, and are seeking to whitewash their past criminal actions (described above) by lobbying for this exception.

The provision of AI agent-services by these companies to their clients is a for-profit arrangement. The only way to ensure responsible use of copyrighted materials is by levying usage fees for copyrighted training content - which may then be reflected in the cost of user/client subscriptions. Let the free market decide whether the services offered are worth the true cost of training data that has been used to train the AI agents, and the profits of the companies offering these services be truly representative of their contributions to the development of the AI offering.